

Redline – Newcastle Core Zoning Code

v0.19-draft → v0.20-draft · changed passages only

How to read this redline. Struck-through text was removed; red text was added immediately after it. Only the TEXT of the Code is compared – natively rendered layout (district spreads, Type plates, district maps) and images are not shown here.

8 changed passage(s) shown below, each under its Section location. Unchanged text is omitted.

Article 3 Thoroughfares › 5. CLASSIFICATION OF EXISTING THOROUGHFARES › d. CLASSIFICATION RUBRIC

1. The Type assigned to an existing segment is determined by applying the following rubric, in the order listed:
 - a. **Adjacent District test.** A segment whose abutting parcels are predominantly in a given District is provisionally classified as the Type targeted for that District in Section 2 (see also the District-Type cross-reference in Table 3.4).
 - b. **Built character**Built-form test.** Where the abutting built form indicates a character is at variance with the Adjacent District test – for example, a segment within D2 whose abutting parcels are uniformly rural in character form – the Type is adjusted to match the that built character form.
 - c. **Right-of-way and cartway test.** Where the existing right-of-way and cartway widths preclude one Type but are consistent with another, the Type is set to the closest match permitted by physical constraints, and the segment is recorded as nonconforming under Section 14.
 - d. **MaineDOT functional class test.** In Districts whose default Type under Table 3.4 is a Road Type – D1, SD-Conservation, SD-Highway Commercial, and SD-Rural Highway – a segment carrying a MaineDOT functional classification of Principal Arterial or Minor Arterial is presumed to be R4 (Highway Commercial) or R5 (Rural Highway) according to its abutting District, and a Collector classification is presumed to be R1 (Connector Road). In all other Districts the Adjacent District test (test a) governs regardless of functional classification: a State Highway or other MaineDOT-classified segment passing through a village or neighborhood District takes that District's targeted Type – so a Main Street that is a State Highway is classified S1 – and its cartway geometry is reconciled with State control through the Section 12 MaineDOT coordination protocol rather than by reclassifying the segment to a Road Type. A Local classification follows the Adjacent District test in every District.
 - e. **Tie-breaker.** Where the above tests produce conflicting indications, the Planning Board determines the Type after a public hearing, considering the intended long-term character development intent pattern of the abutting District(s).

[unchanged table/figure omitted]

Article 3 Thoroughfares › 5. CLASSIFICATION OF EXISTING THOROUGHFARES › e. RECLASSIFICATION

1. The Type assigned to an existing thoroughfare segment may be changed only by:
 - a. Amendment of the segment's Type assignment in the Inventory (Section 5.C) under Article 8 §21 (Zoning Amendment), processed as a Town Meeting matter; or
 - b. Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character form has demonstrably changed such that the current Type no longer reflects either.
2. A reclassification petition may be submitted by:
 - a. The Planning Board.

Article 3 Thoroughfares › 6. NEW THOROUGHFARES › c. TYPE ASSIGNMENT AT TIME OF DESIGN

1. The Type of a new thoroughfare must be assigned at the time of design, before construction drawings are prepared.
2. The Type assignment is made by the applicant in consultation with the Code Enforcement Officer and Road Commissioner, based on the abutting District, the intended built character, form, and the Default Type by District guide in Table 3.4.
3. Where the new thoroughfare serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.
4. Where the new thoroughfare is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.

Article 3 Thoroughfares › 6. NEW THOROUGHFARES › d. DETERMINATION OF COMPONENTS AND WIDTHS

- a. pedestrian safety and comfort consistent with Section 2.C.3;
- b. continuity of the street, sidewalk, and block network;
- c. the `~~character~~`#text(fill: rgb("#cc0000"))[built form]`{=typst}` of the abutting District and the adopted Comprehensive Plan;
- d. stormwater management and the establishment of tree canopy;
- e. emergency-vehicle access; and

Article 3 Thoroughfares › 14. NONCONFORMING THOROUGHFARES › e. RECLASSIFICATION TO RESOLVE NONCONFORMITY

E. RECLASSIFICATION TO RESOLVE NONCONFORMITY

1. Where a nonconforming Thoroughfare cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment's current and likely future character: **built form**.

F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY

Article 8 Administration › 7. WRITTEN INTERPRETATION › c. GENERAL

1. The Code Enforcement Officer may issue written interpretations.
2. A written interpretation does not require the Code Enforcement Officer to reach a particular decision for any application for development review if the facts of the application, property, location, or character: **nature** of the development proposal differ from those stated or assumed in a previously issued written interpretation.
3. Written interpretations must be consistent with the purpose and purpose of this Code and cannot contradict or override any standards of this or any other Ordinance.

Article 8 Administration › 18. SPECIAL PERMIT › e. APPROVAL STANDARDS

- c. The purpose of the District(s) where the property is located;
 - d. The proposed use or activity will be established, maintained, and operated so as to be harmonious with the surrounding area and will not impede the development, use, and quiet enjoyment of abutting property in any foreseeable manner;
 - e. The proposed use or activity will be of a `~~character~~`#text(fill: rgb("#cc0000"))[nature]`{=typst}` that does not produce excessive noise, heat, glare, dust, smoke, fumes, odors, or vibration detectable off the property or that adversely affects the surrounding area;
 - f. The proposed use or activity will not result in the destruction, loss, or damage of any feature determined to be of significant natural, scenic or historic importance; and,
 - g. Considerations indicated elsewhere in this Code for special permit approval.
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Article 9 Definitions

Change of Use: The act of changing the categorization of activity within a building, structure, or portion thereof from one primary use to another.

Character: The combined effect of the physical and design attributes of an area — including the form, scale, massing, and placement of buildings; the pattern of lots, blocks, and streets; the relationship of buildings to the street and to one another; and the streetscape and landscape — that distinguishes the area and that the form-based standards of this Code are intended to express. As used in this Code, character refers to these physical and design attributes; it does not refer to the ownership or occupancy of property, the identity of property owners or occupants, or the socioeconomic composition of an area.

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